

OMB Control No: 0970-0114

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory Delaware

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:37:10 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT: CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not always provide a minimum 12-month eligibility period for each child and does not limit termination of eligibility based on voluntary reporting to allowable reasons, as required by 98.21(a)(1). (Plan Questions 2.5.2a and 2.5.2c)
- The Lead Agency does not allow for all permissible temporary changes to parents' work, education, or training status, as required by 98.21(a)(1)(ii)(A), 98.21(a)(1)(ii)(B), 98.21(a)(1)(ii)(C), and 98.21(a)(1)(ii)(D). (Plan Question 2.5.2b)
- The Lead Agency does not provide sufficient justification for the second eligibility threshold for graduated phase-out, as required by 98.21(b)(1)(ii)(A) and 98.21(b)(1)(ii)(B)(1). (Plan Questions 2.5.5cii and 2.5.5.ciii)

Overall Target Completion Date: 07/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead agency respectfully advises that effective July 1, 2023, the following change occurred which now renders the state compliant with this regulation: Based on children being authorized during any period in a month, families may avail childcare later during the month, but the renewal period is set to 12 months which starts from initial month. This can result in less than 12 months of child care for families. The Lead Agency initiated an eligibility system Change Request that now aligns with policy to address this situation. The finalized approach now provides families with 13 months for child care when the filing date is not on the first of the month. For Intake Child Care Cases, if the Child Care Program Filing Date is not on the first of the month, then Child Care review dates are set to 13 months instead of 12 months. Policy Reference: 11004.9.5 Establishing 12-Month Authorization for Child Care 11000 Child Care Subsidy Program (delaware.gov)	01/08/2025

	The lead agency respectfully advises that per policy #11004.11 Determining and Reviewing Childcare, when a family experiences a temporary change in ongoing status as working or attending job training or education program, services are continued at the same level for no less than 90 days to allow time for job search or re-engagement in a training program. Documentation regarding compliance with these provisions will be submitted.	
2	The lead agency will request TA/guidance regarding compliance with provision of sufficient justification for the second eligibility threshold for graduated phase out.	02/15/2025
3	Delaware will implement action steps from the requested Technical Assistance.	07/01/2025
4	Delaware will amend its plan to document compliance.	07/01/2025

ELIGIBILITY AND ENROLLMENT:PRIORITIZATION OF POPULATIONS

Reason(s) for non-compliance:

- The Lead Agency does not coordinate with licensing agencies and other relevant State and local agencies to provide referrals and support families experiencing homelessness and families caring for children in foster care during a grace period to comply with immunization and other health and safety requirements, as required by 98.41(a)(1)(i)(C)(4). (Plan Question 2.3.3c)

Overall Target Completion Date: 07/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	Delaware will request technical assistance to meet requirements to provide referrals and support families experiencing homelessness and families caring for children in foster care during a grace period to comply with immunization and	02/15/2025

	other health and safety requirements, as required by 98.41(a)(1)(i)(C)(4).	
2	Delaware will implement the actions steps resulting from the requested Technical Assistance.	07/01/2025
3	Delaware will amend its plan to document compliance.	07/01/2025

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not limit all family co-payments to seven percent or less of family income, as required by 98.45(l)(3). (Plan Question 3.1.1a)
- The Lead Agency does not provide data on the extent to which CCDF providers charge families additional amounts above the required co-payments (including data on the size and frequency of such amounts), as required by 98.45(b)(5). (Plan Question 3.1.2eii)

Overall Target Completion Date: 07/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	The lead agency implemented a regulation change which became effective July 1, 2024, capping co-pays at 7% in order to comply with the Final Rule and will submit documentation of this policy change.	10/01/2024
2	The lead agency will request TA /guidance regarding the provision of data on the extent to which CCDF providers charge families additional amounts above the required co-payment (including data on the size and frequency of such amounts).	02/15/2025
3	Delaware will implement results of the technical assistance.	07/01/2025

**LEAD AGENCY RESPONSIBILITIES:PROGRAM ADMINISTRATION, PLAN DEVELOPMENT,
AND PROGRAM/FUNDING COORDINATION**

Reason(s) for non-compliance:

- The Lead Agency did not develop a Statewide Disaster Plan in collaboration with the required entities and does not include all required elements, as required by 98.16(dd)(1) and 98.16(dd)(2)(iii)(B). (Plan Questions 8.5.1bi and 8.5.1bvi)

Overall Target Completion Date: 01/08/2025

Action Step Number	Action Step Description	Target Completion Date
1	The lead agency will submit an updated Statewide Disaster Plan to Regional Office as evidence.	01/08/2025

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through April 30, 2026.
- The Lead Agency does not pay based on enrollment or alternatively does not provide justification that this is impracticable or is not a generally-accepted practice, as required by 98.45(m)(2). (Plan Question 4.4.1b). Please note the Lead Agency has an approved waiver for this requirement through April 30, 2026.
- The Lead Agency does not pay for reasonable mandatory registration fees that the provider charges to private-paying parents, as required by 98.45(m)(4). (Plan Question 4.4.2b)

Overall Target Completion Date: 07/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	The lead agency has requested a waiver for this provision and expects to be in compliance by April 30, 2026.	12/30/2024

2	Revise provider reimbursement policy by January 31, 2025	01/31/2025
3	Communicate policy revision to lead agency eligibility teams and providers beginning February 1, 2025.	02/28/2025
4	Implement system enhancements necessary to support the policy change. This work is expected to be completed by July 1, 2025	07/01/2025

EQUAL ACCESS:PAYMENT RATES

Reason(s) for non-compliance:

- The Lead Agency did not describe how they established adequate base payment rates to meet health, safety, quality, and staffing requirements, as required by 98.45(f)(2)(ii). (Plan Question 4.3.4b)

Overall Target Completion Date: 02/15/2025

Action Step Number	Action Step Description	Target Completion Date
1	The lead agency will submit evidence that it used the most recent MRS and data from the most recent Cost of Care Study, both conducted in 2024 to set payment rates. Based on data from both studies, the lead agency is currently reimbursing at 50% of the 75th percentile of the 2024 Market Rate Survey.	02/15/2025

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through November 30,

2025.

- The Lead Agency has until February 6, 2025, to submit general action steps and estimated timeline related to providing grants or contracts for direct services for infants and toddlers and for children with disabilities using Appendix I of the 2025-2027 CCDF Plan.

Overall Target Completion Date: 11/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	The lead agency has requested a waiver regarding this provision of the New Rule.	12/30/2024
2	Delaware will fund contracts for child care programs in underserved geographic areas called Delaware's "promise communities" in the state fiscal year 2026. Contracts will be funded for "seats" that do not supplant Purchase of Care subsidy for enrolled CCDF-eligible infants and toddlers and children with disabilities. Delaware will negotiate contracts with programs in underserved geographic areas for infant and toddler seats and children with disabilities (infant to age five) seats for State Fiscal Year 2026.	06/30/2025
3	Delaware will change its State-funded Early Care and Education policies and procedure manual for State Fiscal Year 2026. This version of the manual will be used to implement the program using braided funding.	06/30/2025
4	Delaware will verify enrollment of CCDF-eligible children in underserved geographic areas through monitoring within the month of October 2025, 30 calendar days after the start of each contracted program's academic year.	10/31/2025
5	Delaware will pay invoices for direct services that do not supplant Purchase of Care starting in the State Fiscal Year 2026 month that aligns with Federal Fiscal Year 2026. Therefore, the first payment to meet this requirement will occur for the October 2025 month by November 30, 2025.	11/30/2025

6	Delaware will amend its plan to document compliance.	11/30/2025
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EQUAL ACCESS:SUPPLY BUILDING STRATEGIES

Reason(s) for non-compliance:

- The Lead Agency does not adequately describe strategies to improve the supply and quality of child care during non-traditional hours, as required by 98.16(y) and (aa). (Plan Question 4.5.4d)

Overall Target Completion Date: 07/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	Delaware will submit evidence of its strategy to improve the supply and quality of child care during non-traditional hours, the Weekend Child Care contracted scope of work, to the Regional Office.	02/15/2025
2	Delaware will request Technical Assistance to understand how its strategy for child care during non-traditional hours, Weekend Child Care, is not adequately improving the supply and quality of child care as required by 98.16(y) and (aa).	02/15/2025
3	Delaware will implement the actions steps resulting from the requested Technical Assistance.	07/01/2025
4	Delaware will amend its plan to document compliance.	07/01/2025

HEALTH AND SAFETY:BUILDING AND PHYSICAL PREMISES SAFETY

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on building and physical premises safety, including identification of and protection from hazards, bodies

of water and vehicular traffic for licensed centers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1e)

- The Lead Agency does not require an annual unannounced inspection for licensed centers for compliance with pre-service or orientation training requirements related to building and physical premises safety, including identification of and protection from hazards, bodies of water and vehicular traffic, as required by 98.42(b)(2)(i)(B). (Plan Question 5.5.1aii)

Overall Target Completion Date: 07/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Delaware will submit evidence to the Regional Office demonstrating that the pre-service training, "Health and Safety for Child Care Professionals" training, is the same for all provider types, including family child care, large family child care, center and school-age programs. Delaware will submit evidence of the full training transcript to the Regional Office. The nine lessons of pre-service training contain content on building and physical premises safety, including identification of and protection from hazards, bodies of water and vehicular traffic for licensed centers, as required by 98.44(b)(1)(i).	02/15/2025
2	Delaware will submit evidence of its regulations and monitoring process for the required annual, unannounced inspection for licensed centers and all pre-service training, as required by 98.44(b)(1)(i) and 98.42(b)(2)(i)(B). This includes inspection forms.	02/15/2025
3	Delaware will request Technical Assistance to understand how to meet the requirements of 98.44(b)(1)(i) and 98.42(b)(2)(i)(B).	02/15/2025
4	Delaware will implement the actions steps resulting from the requested Technical Assistance.	07/01/2026
5	Delaware will edit licensed facility regulations to comply as necessary. It will submit regulations through the following process: 1. Revise regulations.	07/01/2026

	2. Submit regulation revision request to the Registrar of Regulations who moves the request through the APA process. 3. Communicate final regulations to providers, with timeline of full implementation. 4. Update all inspection forms accordingly.	
6	Delaware will amend its plan to document compliance.	07/01/2026

HEALTH AND SAFETY:CHILD DEVELOPMENT

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on child development, for licensed centers or licensed family child care homes, as required by 98.44(b)(1)(iii). (Plan Question 5.4.1I)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care homes for compliance with pre-service or orientation training requirements related to child development, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 07/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Delaware will submit evidence to the Regional Office demonstrating that the pre-service training, ☐ Health and Safety for Child Care Professionals training, ☐ is the same requirement for family child care, large family child care, center and school-age programs. Delaware will submit evidence of the training transcript to the Regional Office. The nine lessons of pre-service training contain content on domains of child development, for licensed centers or licensed family child care homes, as required by 98.44(b)(1)(iii).	02/15/2025

2	Delaware will submit evidence of its regulations and monitoring process for the required annual, unannounced inspection for licensed centers and licensed family child care homes for compliance with all requirements of 98.44(b)(1)(iii) and 98.42(b)(2)(i)(B). This includes inspection forms.	02/15/2025
3	Delaware will request Technical Assistance to understand how to meet requirements of 98.44(b)(1)(iii) and 98.42(b)(2)(i)(B).	02/15/2025
4	Delaware will implement the actions steps resulting from the requested Technical Assistance.	07/01/2026
5	Delaware will edit licensed facility regulations to comply as necessary. It will submit regulations through the following process: 1. Revise regulations. 2. Submit regulation revision request to the Registrar of Regulations who moves the request through the APA process. 3. Communicate final regulations to providers, with timeline of full implementation. 4. Update all inspection forms accordingly.	07/01/2026
6	Delaware will amend its plan to document compliance.	07/01/2026

HEALTH AND SAFETY:EMERGENCY PREPAREDNESS AND RESPONSE PLANNING

Reason(s) for non-compliance:

- The Lead Agency standard for emergency preparedness and response planning does not include all the required elements for licensed centers, licensed family child care homes, or out-of-school programs, as required by 98.41(a)(1)(vii). (Plan Question 5.3.7vi)
- The Lead Agency does not require pre-service or orientation training on emergency preparedness and response planning for licensed centers or licensed family child care homes, as required by 98.44(b)(1)(i). (Plan Question 5.4.1g)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for emergency preparedness and response planning and with related pre-service or

orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 07/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Delaware will submit evidence to the Regional Office demonstrating how Delaware has standards for volunteer emergency preparedness for centers, family child care and out-of-school programs and volunteer practice drills at centers, family child care, and out-of-school programs.	02/15/2025
2	Delaware will submit evidence to the Regional Office demonstrating that the pre-service training, ☐Health and Safety for Child Care Professionals training,☐ is the same requirement for family child care, large family child care, center and school-age programs. Delaware will submit evidence of the training transcript to the Regional Office. The nine lessons of pre-service training contain content on emergency preparedness and response planning for licensed centers or licensed family child care homes, as required by 98.44(b)(1)(i).	02/15/2025
3	Delaware will submit evidence of its regulations and monitoring process for the required annual, unannounced inspection of licensed centers and licensed family child care homes to comply with 98.41(a)(1)(vii), 98.44(b)(1)(i), and 98.42(b)(2)(i)(B). This includes inspection forms.	02/15/2025
4	Delaware will request Technical Assistance to understand how to meet requirements of 98.41(a)(1)(vii), 98.44(b)(1)(i), and 98.42(b)(2)(i)(B).	02/15/2025
5	Delaware will implement the actions steps resulting from the requested Technical Assistance.	07/01/2026
6	Delaware will edit licensed facility regulations to comply as necessary. It will submit regulations	07/01/2026

	through the following process: 1. Revise regulations. 2. Submit regulation revision request to the Registrar of Regulations who moves the request through the APA process. 3. Communicate final regulations to providers, with timeline of full implementation. 4. Update all inspection forms accordingly.	
7	Delaware will amend its plan to document compliance.	07/01/2026

HEALTH AND SAFETY:PREVENTION AND CONTROL OF INFECTIOUS DISEASES

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on prevention and control of infectious diseases (including immunizations) for licensed centers or licensed family child care homes, as required by 98.44(b)(1)(i). (Plan Question 5.4.1a)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care homes for compliance with pre-service or orientation training requirements related to prevention and control of infectious diseases (including immunizations), as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 07/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Delaware will submit evidence to the Regional Office demonstrating that the pre-service training, ☐ Health and Safety for Child Care Professionals training, ☐ is the same requirement for family child care, large family child care, center and school-age programs. Delaware will submit evidence of the training transcript to the Regional Office. The nine lessons of pre-service training contain content on prevention and control of infectious diseases (including immunizations) for licensed centers or	02/15/2025

	licensed family child care homes, as required by 98.44(b)(1)(i).	
2	Delaware will submit evidence of its regulations and monitoring process for the required annual, unannounced inspection for licensed centers and licensed family child care homes for compliance with 98.44(b)(1)(i) and 98.42(b)(2)(i)(B). This includes inspection forms.	02/15/2025
3	Delaware will request Technical Assistance to understand how it is not meeting requirements of 98.44(b)(1)(i) and 98.42(b)(2)(i)(B).	02/15/2025
4	Delaware will implement the actions steps resulting from the requested Technical Assistance.	07/01/2026
5	Delaware will edit licensed facility regulations to comply as necessary. It will submit regulations through the following process: 1. Revise regulations. 2. Submit regulation revision request to the Registrar of Regulations who moves the request through the APA process. 3. Communicate final regulations to providers, with timeline of full implementation. 4. Update all inspection forms accordingly.	07/01/2026
6	Delaware will amend its plan to document compliance.	07/01/2026

HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all licensed centers, licensed family child care providers, and out-of-school programs, as required by 98.33(a)(4). (Plan Question 5.5.4aii). Please note the Lead Agency has an approved waiver for portions of this requirement through August 1, 2025.
- The Lead Agency does not post pre-licensing inspection reports for licensed centers, as required by 98.33(a)(4). (Plan Question 5.5.4ai)
- The Lead Agency's monitoring and inspection reports do not contain all the required

elements, specifically corrective actions taken by the State and child care provider, as required by 98.33(a)(4). (Plan Question 5.5.4b)

Overall Target Completion Date: 01/31/2026

Action Step Number	Action Step Description	Target Completion Date
1	• The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all licensed centers, licensed family child care providers, and out-of-school programs, as required by 98.33(a)(4). (Plan Question 5.5.4aii)	08/01/2025
2	The Department of Education will organize a cross-agency team among the Department of Education and Department of Services for Children, Youth, and their Families to create solutions for accurate online content population.	10/31/2024
3	Delaware will request a waiver to come into compliance.	12/30/2024
4	Delaware will request Technical Assistance to understand how to meet requirements for reports that include all areas of compliance and non-compliance for all licensed centers, licensed family child care providers, and out-of-school programs, and youth camps as required by 98.33(a)(4).	02/15/2025
5	Delaware will implement the actions steps resulting from the requested Technical Assistance for reports that include all areas of compliance and non-compliance for all licensed centers, licensed family child care providers, and out-of-school programs, and youth camps as required by 98.33(a)(4). New data set and therefore new data extracts will be built to ensure data is being transferred from the FOCUS data system to the Department of Education's Search for Child Care Providers website.	07/01/2025
6	Unexpected errors with the new file will be resolved within a month of launch to ensure	08/01/2025

	compliance with consumer education requirement to post full monitoring reports which must include compliances and non-compliances.	
7	• The Lead Agency does not post pre-licensing inspection reports for licensed centers, as required by 98.33(a)(4). (Plan Question 5.5.4ai) • The Lead Agency's monitoring and inspection reports do not contain all the required elements, specifically corrective actions taken by the State and child care provider, as required by 98.33(a)(4). (Plan Question 5.5.4b)	01/31/2026
8	The Department of Education will utilize the cross-agency team formed between the Department of Education and Department of Services for Children, Youth, and their Families to create solutions for accurate online content population.	01/06/2025
9	Delaware will request Technical Assistance on how to include pre-licensing inspection reports for licensed centers, as required by 98.33(a)(4) and monitoring and inspection reports that contain all the required elements, specifically corrective actions taken by the State and child care provider, for all licensed facility types as required by 98.33(a)(4) on its website.	02/15/2025
10	Delaware will implement the actions steps resulting from the requested Technical Assistance to include pre-licensing inspection reports for licensed centers, as required by 98.33(a)(4) and monitoring and inspection reports that contain all the required elements, specifically corrective actions taken by the State and child care provider, for all licensed facility types as required by 98.33(a)(4). New data set and therefore new data extracts will be built to ensure data is being transferred from the FOCUS data system to the Department of Education's Search for Child Care Providers website.	12/31/2025
11	Unexpected errors with the new file will be resolved within a month of launch to ensure full compliance.	01/31/2026

12	Delaware will amend its plan to document compliance.	01/31/2026
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HEALTH AND SAFETY: RATIOS AND GROUP SIZE FOR CCDF PROVIDERS

Reason(s) for non-compliance:

- The Lead Agency has not established a group size for infants, toddlers, preschoolers, school-age, or mixed-age groups in licensed family child care homes, as required by 98.41(d)(1). (Plan Questions 5.2.2ci, 5.2.2cii, 5.2.2ciii, 5.2.2iv, and 5.2.2v)
- The Lead Agency does not require an annual unannounced inspection for licensed family child care providers for compliance with a group size standard, as required by 98.42(b)(2)(i)(B). (Plan Question 5.5.1bii)

Overall Target Completion Date: 02/15/2025

Action Step Number	Action Step Description	Target Completion Date
1	• The Lead Agency has not established a group size for infants, toddlers, preschoolers, school-age, or mixed-age groups in licensed family child care homes, as required by 98.41(d)(1). (Plan Questions 5.2.2ci, 5.2.2cii, 5.2.2ciii, 5.2.2iv, and 5.2.2v)	02/15/2025
2	Delaware will submit the situation and its regulations on group size to the Regional Office for reevaluation. Delaware will demonstrate that large family child care homes can only have a maximum of 12 children in a group even if there are two caregivers.	02/15/2025
3	• The Lead Agency does not require an annual unannounced inspection for licensed family child care providers for compliance with a group size standard, as required by 98.42(b)(2)(i)(B). (Plan Question 5.5.1bii)	02/15/2025
4	Delaware will submit evidence of its regulations and monitoring process for the required annual, unannounced inspection for licensed family and large child care providers for compliance with a group size standard, as required by	02/15/2025

	98.42(b)(2)(i)(B), to the Regional Office for reevaluation.	
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COMPREHENSIVE BACKGROUND CHECK:BACKGROUND CHECK PROCESSES

Reason(s) for non-compliance:

- The Lead Agency or other state agency is not the entity conducting or making eligibility determinations for all required background checks and does not ensure the privacy of the background check results, as required by 98.43(a)(1)(i) and 98.43(c)(2). (Plan Question 5.7.10)
- The Lead Agency does not post all of the required information related to the interstate child abuse and neglect (CAN) registry check on their consumer education website, as required by 98.43(g) and 98.33(a)(1)(iii). (Plan Questions 5.7.15diii, 5.7.15div, 5.7.15dv, 5.7.15dvii, and 5.7.15dviii)

Overall Target Completion Date: 08/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	• The Lead Agency or other state agency is not the entity conducting or making eligibility determinations for all required background checks and does not ensure the privacy of the background check results, as required by 98.43(a)(1)(i) and 98.43(c)(2). (Plan Question 5.7.10)	03/21/2025
2	Delaware will submit documentation to the Regional Office to demonstrate that we are in compliance. Documentation will include example communications of provider and applicant eligibility letters and a process flow chart. Delaware will provide a demonstration of background check process to the Regional Office, including issuance of provisional eligibility notification during the on-site visit.	03/21/2025
3	• The Lead Agency does not post all of the required information related to the interstate child abuse and neglect (CAN) registry check on their	08/01/2025

	consumer education website, as required by 98.43(g) and 98.33(a)(1)(iii). (Plan Questions 5.7.15diii, 5.7.15div, 5.7.15dv, 5.7.15dvii, and 5.7.15dviii)	
4	Delaware will request technical assistance to understand what needs to be updated on the consumer education website.	03/21/2025
5	Delaware will implement changes to the consumer education website as a result of the requested Technical Assistance.	08/01/2025
6	Delaware will update its plan to demonstrate compliance.	08/01/2025

COMPREHENSIVE BACKGROUND CHECK:PRE-SERVICE CHECK REQUIREMENTS (PROVISIONAL HIRE)

Reason(s) for non-compliance:

- The Lead Agency does not require a qualifying result from an FBI criminal background check or an in-state criminal background check with fingerprints before a prospective staff member begins work, as required by 98.43(d)(4). (Plan Questions 5.7.12a and 5.7.12b)

Overall Target Completion Date: 03/21/2025

Action Step Number	Action Step Description	Target Completion Date
1	Delaware will submit documentation to the Regional Office to show that we are in compliance for all licensed facility types. Documentation will include: a process flow chart, sample provisional eligibility notification, Delacare Regulations for Early Care and Education and School-Age Centers, Delacare Regulations for Family and Large Family Child Care Homes, and comprehensive background check letters for licensed centers, family child care homes, and youth camps.	03/21/2025

2	Delaware will provide a demonstration of background check process to the Regional Office, including issuance of provisional eligibility notification during the on-site visit.	03/21/2025
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PROGRAM INTEGRITY: EFFECTIVE FISCAL MANAGEMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency did not sufficiently describe fiscal controls that allow for tracking of funds to establish allowable expenditures, as required by 98.67(c)(2). (Plan Question 10.1.2b)
- The Lead Agency did not sufficiently describe fiscal controls to prepare and submit required reports, as required by 98.67(c)(1). (Plan Question 10.1.2c)
- The Lead Agency does not sufficiently describe effective internal controls to ensure sound fiscal management, as required by 98.68(a)(1). (Plan Questions 10.1.3a and 10.1.3c)
- The Lead Agency is on a corrective action plan (CAP) for an error rate over 10% reflecting that not all of its fiscal management and internal control practices are sufficiently effective, as required by 98.68(a). (Plan Questions 10.1.2, 10.1.3, 10.1.4, 10.1.5a, and 10.1.6a)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	The lead agency will identify required state team members from each unit within the agency responsible for ensuring program integrity including members of Operations, Fiscal and the Child Care Subsidy teams.	02/28/2025
2	The lead agency will request TA on the use of the Internal Controls Self-Assessment Instrument which will assist the state in reviewing how well current policies and procedures address CCDF program integrity and financial accountability including requirements aimed at reducing payment errors, minimizing program waste, fraud, and abuse; and ensuring that funds are used for	02/28/2025

	allowable program purposes and for eligible recipients.	
3	The lead agency will utilize the Self-Assessment Instrument to measure the effectiveness of internal controls.	03/31/2025
4	The lead agency will follow up with recommendations to address deficiencies identified as a result of the Self-Assessment.	04/30/2025
5	The lead agency will continue to follow action steps as referenced in the Corrective Action Plan	01/15/2025

PROGRAM INTEGRITY: EFFECTIVE INTERNAL CONTROLS

Reason(s) for non-compliance:

- The Lead Agency does not sufficiently describe their organizational structure intended to ensure internal controls, as required by 98.68(a). (Plan Question 10.1.1)
- The Lead Agency does not describe how effective internal controls in place include processes to identify areas of risk, as required by 98.68(a)(2). (Plan Question 10.1.4a)
- The Lead Agency does not describe how the Lead Agency evaluates the effectiveness of its internal controls, as required by 98.68(a)(4). (Plan Questions 10.1.6a and 10.1.6b)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	The lead agency will identify required state team members from each unit within the agency responsible for ensuring program integrity including members of the Operations, Fiscal and the Child Care Subsidy teams.	02/28/2025
2	The lead agency will request TA on the use of the Internal Controls Self-Assessment Instrument which will assist the state in reviewing how well current policies and procedures address CCDF program integrity and financial accountability including requirements aimed at reducing payment errors, minimizing program waste, fraud, and abuse; and	02/28/2025

	ensuring that funds are used for allowable program purposes and for eligible recipients.	
3	The lead agency will utilize the Self-Assessment Instrument to measure the effectiveness of internal controls.	03/31/2025
4	The lead agency will follow up with recommendations to address deficiencies identified as a result of the Self-Assessment.	04/30/2025

PROGRAM INTEGRITY:FRAUD INVESTIGATION, PAYMENT RECOVERY, AND SANCTIONS

Reason(s) for non-compliance:

- The Lead Agency does not include the results of activities to identify program violations, as required by 98.68(b)(1). (Plan Question 10.2.1)
- The Lead Agency does not include the results of activities to investigate and recover fraudulent payments, as required by 98.68(b)(2). (Plan Question 10.2.2b)
- The Lead Agency does not include the results of activities to impose sanctions on clients or providers in response to fraud, as required by 98.68(b)(2). (Plan Question 10.2.2e)

Overall Target Completion Date: 01/08/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead agency respectfully advises that per our current policy/procedure, substantiated cases of fraud or intentional program violation by a parent/caretaker will result termination from the childcare subsidy program. Policy Citation: 1104.12 Closing Child Care Cases; 11005.2 Parent/Caretaker Responsibilities; 11005.4 Child Care Overpayments; 11006.4.3 Clients Who Fail to Pay Child Care Fee, 11006.5 Termination. When provider fraud or intentional program	01/08/2025

	violation is substantiated, the lead agency has the right to withhold payment and/or terminate the childcare subsidy contract. Policy Citation: 11006.1 Service Providers; 11006.5.1 Terminating Providers and Self-Arranged Clients 11000 Child Care Subsidy Program (delaware.gov)	
2	The lead agency will amend the plan to include verbiage regarding inclusion of the results of activities to identify program violations.	01/31/2025

CONSUMER EDUCATION:WEBSITE AND RESOURCES FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide aggregate data on the number of serious injuries, number of deaths, number of substantiated child abuse instances that occurred in licensed youth camps considered child care settings, or the total number of children in care for all licensed youth camps, as required by 98.33(a)(5)(ii). (Plan Questions 9.2.5ai, 9.2.5aii, 9.2.5aiii, and 9.2.5aiv)

Overall Target Completion Date: 02/15/2025

Action Step Number	Action Step Description	Target Completion Date
1	Delaware runs its calendar-year report on the aggregate data for the number of serious injuries, number of deaths, and number of substantiated child abuse instances that occurred in licensed facilities by January 15th of the subsequent calendar year. Delaware will run the report on the aggregate data on the number of serious injuries, number of deaths, number of substantiated child abuse instances that occurred in licensed youth camps considered child care settings, or the total number	01/15/2025

	of children in care for all licensed youth camps by January 15, 2025.	
2	Delaware will update its website to show the reported totals for licensed youth camps. It will add a space for the yearly aggregate data on the number of serious injuries, number of deaths, number of substantiated child abuse instances that occurred in licensed youth camps considered child care settings, or the total number of children in care for all licensed youth camps, as required by 98.33(a)(5)(ii).	02/15/2025